

Tentative Rulings
August 10, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, the tentative ruling will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

19. *Boyer, et al, v. Cambridge Sierra Holdings, LLC, et al*, Case No. CIVSB2522108
Plaintiffs' MTC Responses from Defendant Cambridge to Form Interrogatories, Set One
Plaintiffs' MTC Responses from Defendant Cambridge to Special Interrogatories, Set One
Plaintiffs' MTC Responses from Defendant Cambridge to Requests for Production, Set One
8/10/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** these unopposed motions. Responses are due within thirty days.

Plaintiffs served their first set of discovery on Defendant Cambridge Sierra Holdings (Cambridge) on December 31, 2025. This first set of discovery included the at-issue Form Interrogatories, Set One (FROG1), Special Interrogatories, Set One (SROG1), and Requests for Production of Documents, Set One (RFP1). (Needelman Decl., ¶¶3-5, Exhs. 1-2.)¹

Responses were due on February 3, 2026, but no responses were received. (*Id.*, ¶16.) Plaintiffs' counsel sent an email regarding the failure to respond on February 6, 2026, and gave Defendant a 2-week extension. (*Ibid.*) Again, no responses came by the deadline. (Needelman Decl., ¶18.) Plaintiffs counsel then gave a deadline of March 13, 2026 for responses to be provided, indicating that these motions would be filed thereafter. (*Id.*, ¶19.) These motions to compel responses to the discovery followed.

As the motions are unopposed, it appears the arguments set forth therein are conceded. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue."]; see *Pacifica First National, Inc. v. Abekasis* (2021) 50 Cal.App.5th 654, 657 [Not returning to a topic on reply, "is a concession."]) Thus, the Court would grant the motions.

20. *SA California Group, Inc., v. Tucciarone, et al*, Case No. CIVSB2208478
Judgment Creditor's Motion for Reconsideration
8/10/26, 9:00 a.m., Dept. S-17

The Court would **DENY** the motion as it fails to set forth new law, facts, or circumstances as contemplated by Section 1008 of the Code of Civil Procedure.

However, having now been more fully apprised of the issues and the Legislative history intent of the salient statute, the Court would like to re-examine the July 9, 2026, ruling under its own authority. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107-1109 [inherent authority to reconsider ruling].) The parties will select a hearing date for this reconsideration and set a briefing schedule, to the extent necessary.

¹ While these are three separate motions, the declarations are fairly uniform. Therefore, the citations refer to the declarations of all three, unless stated otherwise.